
Appeal Decision

Site visit made on 21 April 2026

by **L Bartle BA(Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18th September 2026

Appeal Ref: 6004496

Land to rear of 223A Main Street, Thornton, Coalville, LE67 1AH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr Iain Long against the decision of Hinckley and Bosworth Borough Council.
 - The application Ref is 25/00775/OUT.
 - The development proposed is outline application for demolition of all existing buildings and structures and erection one detached dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The planning application is made in outline with details of access and layout provided for consideration at this stage. All other matters are reserved for future consideration. I have taken the submitted plans relating to access and layout as forming part of the application. I have treated other plans as indicative only.
3. A Landscape and Visual Appraisal dated January 2026 was submitted with the appeal. It responds to the Council's reason for refusal and was carried out after the planning application was determined by the Council. Although the Council's Statement of Case does not refer to this supplementary evidence, it has, along with other interested parties, had the opportunity to consider its findings. There would not be procedural unfairness if I take it into account in my consideration of the appeal and I have determined the appeal accordingly.
4. During the appeal, it was brought to light that the ownership certificate submitted with the application did not accurately reflect all interests in the appeal site. The appellant subsequently provided evidence that the requisite notice had been served on the relevant landowner. Having regard to the information before me, I am satisfied that the necessary notification requirements have been complied with and that no prejudice has arisen. I have therefore proceeded on the basis of the corrected certification.
5. The appellant contends that the proposal would be exempt from the biodiversity net gain (BNG) requirements set out in Schedule 7A of the Town and Country Planning Act 1990 (as amended) on the basis that it would comprise self-build and custom housebuilding. To support that position, a signed Unilateral Undertaking (UU) was submitted and subsequently revised during the appeal process to address the Council's comments.

6. Although an executed UU is before me, it contains inconsistencies regarding the land to which it relates. In particular, Schedule One refers to land at 223A Main Street, Thornton, Coalville, whereas the definition of "Site" refers to land adjacent to Welton Lodge, Hunts Lane, Desford, Leicestershire. Furthermore, the plan attached to the UU differs from the application location plan. Taken together, these discrepancies create uncertainty as to the land bound by the planning obligations.
7. Consequently, I cannot be satisfied that the development would qualify for the claimed exemption from the BNG requirements. Accordingly, a main issue in this appeal is whether the proposal would comply with the statutory BNG requirements.
8. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given an opportunity to comment on the implications of the revised Framework for the appeal, and I have taken those comments into account in reaching my decision. References to the Framework in my decision are to the August 2026 version.

Main Issues

9. The main issues are:
 - whether the proposal makes adequate provision for BNG; and,
 - whether the proposed development would be in a suitable location for new housing with regard to the local development plan and the character and appearance of the site and surrounding area.

Reasons

Biodiversity

10. Unless exempt, the proposed development would be subject to the statutory BNG requirements, which require development to achieve a biodiversity net gain of at least 10%. The appellant's case is advanced on the basis that the development would comprise self-build and custom housebuilding and would therefore be exempt from those requirements.
11. The Self-build and Custom Housebuilding Act 2015 (as amended by the Housing and Planning Act 2016) places duties on local authorities in relation to the provision of serviced plots for self-build and custom housebuilding. Furthermore, section 123 of the Levelling-up and Regeneration Act 2023 provides that development permissions may only count towards meeting those duties where the development is genuinely self-build or custom housebuilding and is secured as such.
12. For the reasons set out above, I am not satisfied that the submitted UU would effectively secure the development as self-build and custom housebuilding. Consequently, I cannot be satisfied that the proposal would qualify for the exemption from the statutory BNG requirements relied upon by the appellant.
13. The Preliminary Ecological Appraisal indicates that the appeal site is predominantly comprised of buildings and artificial hard surfaces. Nevertheless, the minimum biodiversity information required by Article 7(1A) of the Town and Country Planning (Development Management Procedure) (England) Order 2015 (DMPO) has not been submitted. In the absence of that information, I am unable to

determine the pre-development biodiversity value of the site or whether the proposal would achieve the required minimum 10% BNG.

14. Accordingly, based on the evidence before me, I cannot conclude that the proposal would either benefit from an exemption from, or comply with, the statutory BNG requirements. The proposal therefore conflicts with Schedule 7A of the Town and Country Planning Act 1990 and the requirements of the DMPO. It would also conflict with Policy N2 (1) (a) of the Framework and the requirement for BNG where applicable.

Location of development

15. There is no dispute between the parties that the site lies outside the defined settlement boundary of Thornton and is therefore located within the countryside for planning policy purposes. Policy DM4 of the Hinckley and Bosworth Site Allocations and Development Management Policies Development Plan Document (the DPD) seeks to safeguard the countryside from unsustainable development. The proposed dwelling would not fall within any of the categories of development identified by Policy DM4 as being acceptable in principle within the countryside.
16. The site itself is physically separated from the built form of the village and accessed via a lengthy private track extending from Main Street. It contains a range of existing buildings and structures, including stables, storage buildings, hardstanding and other associated features, resulting in a developed and somewhat fragmented appearance.
17. The evidence before me indicates that the proposed dwelling would replace much of the existing built form and occupy a smaller overall footprint than the buildings currently on the site. Furthermore, with the exception of the site's more open boundary towards Thornton Reservoir, the site is largely enclosed by boundary vegetation and mature tree planting. Consequently, visibility from surrounding public viewpoints, including sections of the National Forest Way, is limited and filtered by vegetation.
18. In addition, the sloping landform between the site and Thornton Reservoir further reduces its visibility, particularly in relation to the area where the proposed dwelling would be located. The site is also experienced within a wider context that includes St Peter's Church, nearby residential curtilages and other settlement-edge features. Consequently, the proposal would be viewed against a wider backdrop of some existing development and landscape features rather than as an isolated intrusion into the countryside.
19. Whilst the dwelling would introduce a residential use and associated domestic activity, the submitted layout demonstrates that a single dwelling could be accommodated within the site without causing unacceptable harm to the character and appearance of the site or its surroundings. On the evidence before me there is no evidence to indicate that the development would be incapable of according with the principles established in the Good Design Guide and Policy DM10 of the DPD. Accordingly, it would not erode important open views, nor would it materially alter the wider landscape character of the surrounding countryside.
20. Turning to the provisions in the Framework, Policy S5 identifies particular forms of development that may be acceptable outside settlement boundaries where specified criteria are satisfied. The Council has confirmed that it cannot currently

demonstrate a five-year supply of deliverable housing sites. Consequently, Policy S5(1)(j) is engaged, requiring consideration of whether the development is physically well-related to an existing settlement and of a scale that can be accommodated having regard to existing or proposed infrastructure provision.

21. In this case, although the proposal would comprise backland development to the rear of properties on Main Street, the site lies within the wider fringe of the built-up edge of Thornton. Moreover, there is no compelling evidence before me to suggest that a single dwelling would place unacceptable pressure upon local infrastructure or services. I therefore find that the proposal satisfies the criteria of Policy S5(1)(j).
22. Although the site lies outside the settlement boundary and therefore conflicts with Policy DM4 of the DPD, that policy is not wholly consistent with Policy S5 of the Framework. In accordance with Annex A of the Framework, I have therefore afforded the conflict with Policy DM4 only very limited weight.
23. Taking these matters together, I conclude that the proposal would represent an acceptable location for new housing. It would satisfy the requirements of Policy S5(1)(j) of the Framework and, for the reasons given above, would not unduly harm the character and appearance of the site and surrounding area. Consequently, the proposal would accord with Policy DM10 of the DPD insofar as it requires development to complement or enhance local character, and with the design principles of Policy DP3 of the Framework.
24. Accordingly, notwithstanding the very limited weight given to the conflict with Policy DM4 arising from the site's location outside the settlement boundary, I find that the proposal would accord with the development plan when read as a whole and with the Framework in respect of this main issue.

Other Matters

25. The appellant refers to an appeal decision¹ in which the benefits of a self-build dwelling were found to outweigh identified conflicts with the development plan. However, that decision turned on its own facts and, importantly, the Inspector was satisfied that the proposed dwelling would be secured as self-build development. For the reasons given above, I have not reached the same conclusion in this case. Accordingly, I attach limited weight to that decision.
26. The Council refers to Policy DM17 in its reason for refusal, which relates to highways and transportation matters. However, the Council has identified no specific highway or transport concerns, and I have no compelling evidence before me to conclude that the proposal would conflict with the objectives of that policy. Accordingly, I attach little weight to the alleged conflict with Policy DM17.

Planning Balance

27. I have found that the proposal has not been demonstrated to qualify for the claimed exemption from the statutory BNG regime. Furthermore, the biodiversity information required by the DMPO has not been submitted. Consequently, I cannot conclude that the proposal would comply with the mandatory BNG requirements. This would conflict with Policy N2(1)(a) of the Framework insofar as it expects development to address BNG requirements where they apply. I attach substantial weight to that harm.

¹ APP/G2435/W/24/3343890

28. Against this, I acknowledge that the appeal site is reasonably accessible to services and facilities within Thornton and that future occupiers would not be wholly reliant on the private car for day-to-day needs. The proposal would also provide one additional dwelling and would generate limited economic benefits during construction and through the expenditure of future occupiers within the local economy. Taken together, I afford moderate weight to these benefits.
29. Accordingly, I find that the adverse impacts of the proposal would substantially outweigh its benefits. The presumption in favour of sustainable development in Policy S3 of the Framework does not therefore apply.

Conclusion

30. Although the proposal would accord with the development plan when considered as a whole, I have identified material considerations which indicate that the appeal should be determined other than in accordance with the development plan.
31. For the reasons given above, I conclude that the appeal should be dismissed.

L Bartle

INSPECTOR